

This motion is DENIED WITHOUT PREJUDICE.

The parties should further meet and confer. Given the policy that a timely amendment to an operative pleading is generally allowed when it is not unreasonably delayed causing undue prejudice, the parties should consider stipulating to the filing of an amended answer.

NUNEZ v. FIRST CAL FOODS, LLC, dba DENNY'S
Case No. CU25-06124

Motion for Sanctions under CCP Section 128.7

TENTATIVE RULING

Defendant's motion for sanctions under CCP Section 128.7 is DENIED.

It appears that plaintiff did not work for defendant for at least twelve months before she went on maternity leave, and therefore, she was not an "eligible employee" who was entitled to have her employment position held for her for four months while she was on leave under the California Family Rights Act ("CFRA"; Govt. Code §§ 12945.1-12945.2; 2 CCR § 11046.) Further, Plaintiff did not seek to return within four months after initiating leave due to pregnancy, childbirth or related medical condition. (Govt. Code § 12945 ("PDLL").)

But, the complaint includes other allegations not dependent upon CFRA and PDLL. For example, in addition to the wage and hour claims, plaintiff alleges defendant failed to reasonably accommodate her when she complained of pain due to standing for extended periods while pregnant.

Sanctions are proper only if the "pleading, motion or paper" is without merit. The fact that one of the arguments is frivolous does not justify sanctions. (See e.g. The Rutter Group, California Practice Guide, Civil Procedure Before Trial §§ 9:1159.1 and 9:1179; see also *Golden Eagle Distributing Corp. v. Burroughs Corp* (9th Cir. 1986) 801 F2d 1531, 1540 [interpreting FRCP 11].)

LESLEY SYRETT v. LUXOTTICA OF AMERICA, INC. and LORRAINE CHAMPLAIN
Case No. CU25-06158

Defendants' Motion to Compel Arbitration

TENTATIVE RULING

The motion of Defendants LUXOTTICA OF AMERICA, INC. ("LUXOTTICA") and LORRAINE CHAMPLAIN to compel arbitration of Plaintiff LESLEY SYRETT's complaint alleging violations of the Fair Employment and Housing Act and wage and hour law is GRANTED.